

**Defense Advanced Research Projects Agency (DARPA)**

**Commercial Strategy:  
DARPA'S COMMERCIAL SOLUTIONS OPENING  
(DCSO)**

**The Transition of DARPA-Funded Technologies Using  
Commercial Solutions**

**HR001125RE003**

**Amendment 0001**

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# 1 FUNDING OPPORTUNITY DESCRIPTION

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## 1.1 BACKGROUND & SCOPE

### 1.1.1 DARPA's Commercial Solutions Opening (DCSO)

The Defense Advanced Research Projects Agency's (DARPA) mission is to create technological surprise for national security, which drives its Research and Development (R&D) programs to transform revolutionary concepts into practical capabilities for the military and civilian society. Under DARPA's Commercial Solutions Opening (DCSO), DARPA seeks to close military and civilian capability gaps with commercial solutions derived from the Agency's R&D programs. This DCSO is solicited by DARPA Commercial Strategy within the Director's Office. The Commercial Strategy team oversees the implementation of the DCSO, which includes the Embedded Entrepreneurship Initiative (EEI). The EEI, through the DCSO, awards participants with funds to support bringing in an embedded entrepreneur (EE) to assist performers with commercialization and business efforts.

Proposals for the DCSO are solicited for transitioning and commercializing innovative solutions derived from DARPA R&D-funded technologies into capabilities that fulfill requirements, close capability gaps, or provide new technological advancements. DARPA reasonably anticipates meaningful proposals with varying technical, scientific, and business approaches in response to this DCSO.

## 1.2 PROGRAM OVERVIEW

### 1.2.1 Commercial Strategy Goals

DARPA seeks to: (1) make appropriate, high-impact technologies, developed by the Agency, commercially available for purchase by the DoD; and (2) invest in and strengthen the performers servicing the DoD needs.

The EEI is one of several initiatives designed to support these goals.

### 1.2.2 Commercial Strategy – Embedded Entrepreneur Initiative (EEI)

The EEI seeks to connect the strong technical talent resident in DARPA's performer teams with equally strong business talent to bring a new capability to market. The program provides technical experts with the tools, advice, and business acumen that is often otherwise absent. EEI supports development of a robust and deliberate commercialization strategy for selling products to the Government and commercial markets, and positions DARPA performers to attract U.S. investment.

There are two primary resources provided by DARPA's EEI program: (1) a Senior Commercialization Advisor (SCA), separately funded by DARPA, who works with the performer to examine the business case for the new technology and uses commercial methodologies to identify steps toward achieving a successful transition of technology to the Government and commercial markets; (2) funding for the performer to hire an embedded entrepreneur (EE) to achieve specific milestones for transitioning the technology to products

that serve both defense and commercial markets. The EE's qualifications should include business experience within the target industries of interest, experience in commercializing early-stage technology, and the ability to communicate and interact with technical and non-technical stakeholders.

Proposals in response to this solicitation shall demonstrate clear alignment with DARPA's Commercial Strategy goals, outline the case to receive funding to hire the EE, and demonstrate a strong understanding of the tasks required for commercialization and a readiness to complete these tasks. Specifically, proposals shall address each of the following focus areas:

#### Focus Area 1: Potential Contribution and Relevance to the DARPA Mission

DARPA seeks the commercialization of technologies aligned with our key mission, creating technical surprise. Proposals should describe the potential to make a significant impact should the commercialization efforts be successful. This impact may apply to the DoD, the U.S. government, the U.S. economy, and/or broader civil society. Contrasting your technology with alternatives and any unique value and/or barriers your technology brings, will strengthen responses to Focus Area 1. While DARPA technologies are most often associated with high risk, high pay-off technologies, stable mature products greatly increase the probability of commercialization success. Therefore, strong responses to Focus Area 1 will demonstrate that the technical risk of the technology has been sufficiently de-risked by previous DARPA and/or other R&D efforts, while still providing the high impact expected by DARPA technologies.

#### Focus Area 2: Commercialization Readiness

Most teams seeking an EEI award are not experts in commercialization, but strong proposals will demonstrate an understanding of the challenges associated with turning a technology into a product and then bringing that product to market. Proposers should address all commercialization readiness factors such as the freedom to operate with the Intellectual Property (IP) required to commercialize. In addition, as the execution team is a strong indicator of commercialization success, strong candidates for the EEI program will highlight the strength of their existing team and how the EE sourced from outside of the existing team will strengthen the team.

## **2 AWARD INFORMATION & ELIGIBILITY**

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### **2.1 ELIGIBILITY**

#### **2.1.1 DCSO**

Only fixed price contract or agreement awards will be made and only for innovative solutions that are derived from DARPA R&D under DARPA-funded programs. "Derived from DARPA R&D" includes meeting one of the following conditions:

- (1) Prior relevant R&D done by the Offeror on a DARPA R&D program as a prime contractor or sub-contractor to a prime contractor. In this context, the term "contractor" includes parties to assistance agreements or Other Transaction (OT) agreements with DARPA, as well as parties under contract with other U.S. Government agencies and organizations that have awarded the contracts/agreements on behalf of DARPA.
- (2) Where the Offeror did not develop the technology as a prime- or sub-contractor on a DARPA R&D program, has acquired, or is in good faith negotiations to acquire the rights to make, use, or sell a product that includes technology developed under a DARPA R&D program.
- (3) DARPA requires adequate due diligence to assess market fit and commercialization risks similar to industry standard due diligence processes for investment. DARPA will conduct this due diligence at no cost to the Performer when authorized by a current DARPA Program Manager. The offeror should provide information stating approximately when due diligence was performed.
- (4) For MVP Stand-Alone proposals - DARPA requires adequate due diligence to assess product development and commercialization risks similar to industry standard due diligence processes for investment. DARPA will conduct this due diligence at no cost to the Performer when authorized by a current DARPA Program Manager or similar Agency representative. The offeror should provide information stating approximately when due diligence was performed.

### **2.2 TYPES OF AWARDS**

The Government may award a Federal Acquisition Regulation (FAR) procurement contract or an Other Transaction (OT) for Prototypes with fixed payable milestones under 10 U.S.C. § 4022. Only proposals which contain an MVP option will be considered for an OT award instrument. The Government Contracting/Agreements Officer shall have sole discretion to select the award instrument type, regardless of the instrument type proposed, and to negotiate and determine all instrument terms and conditions with selected Offerors.

### **2.3 DEADLINE**

DARPA will accept Commercial Solutions Proposals through April 30, 2026. DARPA will review proposals periodically while this DCSO is open. DARPA may amend this DCSO to include changes to the proposal submission deadlines.

## 2.4 DCSO PROPOSAL & AWARD PROCEDURE

### 2.4.1 Submission of proposals for this DCSO

A Commercial Solutions Proposal (CSP) may be submitted to [DARPACSO@darpa.mil](mailto:DARPACSO@darpa.mil) any time prior to the deadline in Section 2.3. Submissions sent through other media, channels, or after the prescribed DCSO open period will not be considered, reviewed, or evaluated.

### 2.4.2 Award

Upon favorable review of the CSP per the evaluation process outlined below, and subject to the availability of funds, the Government may award a fixed price procurement contract or OT for Prototypes under 10 U.S.C. § 4022 with fixed price payable milestones.

## 3 REQUIREMENTS FOR COMMERCIAL SOLUTIONS PROPOSAL SUBMISSION

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### 3.1 GENERAL

- Page limits apply with 8-1/2 by 11-inch single-sided paper using not smaller than 12-point font and single spaced. Font sizes of 8 or 10 point may be used for figures, tables, and charts.
- CSPs must be submitted in .pdf, .odx, .doc, or .docx formats (and .xls, or .xlsx formats as specified in the Price Proposal section).
- The CSPs shall not include elaborate brochures or general capability statements. Specific examples of problems, approaches, or goals are preferred over qualitative generalities.
- Use of a diagram(s) or figure(s) to depict the essence of the proposed solution is encouraged.
- Any base CSP, which includes the EEI effort submitted under this DCSO should have a performance period of **12 months**. For MVPs, the performance period should not exceed 24 months.
- All CSPs shall be **unclassified**.
- Offerors are responsible for conspicuously identifying sections of the CSP, including technical data and computer software that may be considered proprietary information. Submissions containing proprietary information must mark the cover page and each page containing such information with a label such as "Proprietary" or "Company Proprietary." NOTE: "Confidential" is a classification marking used to control the dissemination of U.S. Government National Security Information as dictated in Executive Order 13526 and must not be used to identify proprietary business information.
- The cost of preparing CSPs in response to this DCSO is not considered a direct charge to any resulting award or any other contract. CSP preparation costs are not recoverable from the Government.
- Send questions to [DARPACSO@darpa.mil](mailto:DARPACSO@darpa.mil).

## 3.2 COMMERCIAL SOLUTION PROPOSAL (CSP)

The CSP shall include the following required contents (in this order):

1. Title Page (No page limit)
2. Technical Proposal (Page Limit: 5 Pages)
  - a. Executive Summary
  - b. Focus Areas
  - c. Embedded Entrepreneur (EE) Qualifications and Capabilities
  - d. Important Relevant Information
3. Statement of Work (No Page Limit)
4. Price Proposal (No Page Limit)

The following sections describe in greater detail the requirements for the CSP. Proposals must address **all** questions outlined in each of the CSP sections.

### 3.2.1 Title Page (No page limit)

- Offeror Name
- Unique Entity Identifier (generated by SAM.gov)
- CAGE Code
- Recommended North American Industry Classification System (NAICS) code for the CSP to include the Company's business size under that NAICS code
- Title of Proposal
- Address
- Proposal Date
- CSP Validity Period (minimum 120 calendar days)
- Administrative and Technical Points of Contact (Name, E-Mail Address, Phone)
- List of Other Team Members (subcontractors or consultants)

### 3.2.2 Technical Proposal (Page Limit: 5 Pages)

- a) **Executive Summary** - Provide a concise Executive Summary of the proposed solution, how it fulfills Sections 2.1.1 derived from DARPA R&D, and when the due diligence was completed. Proposals shall also include alignment to the Commercial Strategy Goals as outlined in Section 1.2.1.
- b) **Commercial Strategy Focus Areas** – Provide a summary of the proposed solution, including answers to the questions for each Focus Area. Proposals shall address each question in-depth while offering insights into the innovative solutions proposed. Note: the EE is the only key personnel necessary for this contract.

Focus Area 1: Potential Contribution and Relevance to the DARPA Mission

- What is the impact to DARPA's mission of creating technical surprise?
- If commercialization is successful, what is the overall contribution to DoD, government, and/or civil society?
- What was the key technology developed under DARPA R&D efforts that is now ready for commercialization?
- What significant developmental milestones (e.g., in-field testing, clinical trial, etc.) were achieved under DARPA or other R&D efforts?

- What is the value proposition of your technology?
- How does your technology compare with alternatives?
- How would you describe the maturity or level of technical risk of your technology?

#### Focus Area 2: Commercialization Readiness

- What are the key challenges associated with turning your technology into a product?
- What barriers currently exist in bringing the technology to market?
- What barriers (if any) currently impede “freedom to operate”, including ownership or the right to use all relevant IP?
- What experiences (if any) has your team had in successfully commercialized technologies in the past?
- What are the attributes of an EE needed to strengthen your team?
- What are the proposed labor hours required by the EE?
- Are foreign nationals part of the team? If yes, how will you safeguard any sensitive information?

#### Minimum Viable Product – Option or Stand-Alone

- The MVP provides DARPA an avenue to apply additional resources for commercialization if it is determined to be in the Government’s best interest. This expansion on the EEI is highly scrutinized and may weaken the proposal if significant additional funding is required to mature the technology.
- Offerors may propose an MVP as an option with their EEI proposal **OR** as a stand-alone proposal. Prototypically an MVP effort will follow an EEI effort.
- ***If you propose an MVP (option or stand-alone):*** What is the rationale for the desired MVP? Describe how the MVP will benefit the business case at this stage of technological readiness and why DARPA is the appropriate funding mechanism.
- ***If you propose an MVP (stand-alone only):*** Contract number and period of performance for the associated DARPA EEI contract or the DARPA contract number and period of performance from which the proposed technology is derived. The proposed MVP must be the same technology as the associated DARPA contract.

#### c) Embedded Entrepreneur (EE) Qualifications and Capabilities

- (1) ***EE Qualifications and Capabilities*** - Provide a brief overview of the required qualifications and capabilities of the EE candidate. Identify the knowledge, skills, and experience the team would seek in an EE to augment the team to execute the tasks outlined in the Statement of Work (SOW). If an EE is already identified, the Offeror may include name(s) and qualifications of EE candidate(s) to support the Offeror’s understanding of the requirement.



**d) Important Relevant Information**

(1) ***Current and past contracts and agreements with DARPA*** - Provide a summary of all DARPA contract(s) and agreement(s) awarded to your organization and to any proposed Team Member within the past three (3) calendar years. Be sure to include:

- (a) The contract and/or agreement number, the award date and period of performance, the DARPA office, associated program, and program manager name.
- (b) State if your organization and/or the proposed Team Member was the prime or sub- contractor.

NOTE: The Government will review this information in evaluating potential or actual organizational conflicts of interest (OCIs) involving your organization and any proposed Team Member.

(2) ***Ownership, Control, and Influence Summary (not included in page limit)*** - Provide a comprehensive summary describing your organization's ownership structure. Be sure to include:

- (a) If your organization is wholly owned, controlled, and/or operated by U.S. citizens; what other investors your organization may have; or if your organization has any foreign ownership or investors.
- (b) If you have other investors, then state their citizenship status (U.S. or foreign; if foreign, please detail what country), and the percentage ownership and/or amount of control and influence they have over your organization's activities.

(3) ***Organizational Conflicts of Interest (OCIs) (not included in page limit)*** - In accordance with FAR 9.5, Offerors shall disclose all known potential or actual OCIs involving the Offeror's organization and any proposed Team Members (e.g., subcontractors or consultants).

- (a) Offeror shall disclose, for instance, any conflicting roles potentially created by the Offeror's current or past involvement (within the past three (3) calendar years) with a DARPA contract or agreement, either as a prime or sub, and identify any DCSO contract/agreement requirements that might bias the Offeror's judgment or provide the Offeror with an unfair competitive advantage in future DARPA solicitations or research funding announcements.
- (b) Offeror shall submit a written OCI mitigation plan for all disclosed OCI(s), including identifying and describing the OCI(s), the action the Offeror has taken or proposes to take to avoid, neutralize, or mitigate the OCI(s) disclosed under subparagraph (a) in the context of each of the OCI limitations outlined in FAR 9.505-1 through FAR 9.505-4. The Government may require the Offeror to provide additional information to assist the Government in evaluating the Offeror's OCI mitigation plan.
- (c) If the Government determines that the Offeror failed to disclose an OCI fully or failed to reasonably provide additional information requested by the Government to assist in evaluating the Offeror's OCI mitigation plan,

the Government may reject the CSP and withdraw it from consideration for award.

- (d) The Government will review the OCI mitigation plan per FAR 9.506. In addition, if the Offeror is currently a DARPA support contractor or DARPA R&D performer, the Government may review the mitigation plan following Agency-specific OCI procedures in DARPA Instruction 70, Contractor Relationships: Inherently Governmental Functions, Prohibited Personal Services and Organizational Conflicts of Interest (May 24, 2022, ed.). The Government expects that most CSPs will not be considered DARPA support contractors or R&D performer services, and DARPA Instruction 70 will not apply.

- (4) ***DARPA-Specific Representations and Certifications.*** Offerors shall submit DARPA-Specific Representations and Certifications for all proposed award instrument types (procurement contract and OTs). See [DARPA Representations and Certifications](#) for further information on requirements depending on the requested award instrument.
- (5) ***Other Terms and Conditions.*** Offerors may provide their suggested terms and conditions for consideration to be consolidated with the Government's. Note that there are certain terms and conditions the Government may be unable to accept.

### **3.2.3 Statement of Work (SOW) – (not included in page limit)**

Submit a proposed Statement of Work *as a separate MS Word document* using the SOW Template (DCSO Attachment 1). ***Please note that proprietary information shall not be contained within the SOW.*** However, if the Offeror believes that proprietary information is necessary, that information shall be marked appropriately, and the Contracting Officer will determine whether it shall be included in a resultant contract. The proposed SOW reports shall include, at a minimum, recruitment of at least one external EE. All other proposed SOW tasks must come from the SOW template.

### **3.2.4 Price Proposal (No Page Limit)**

The Price Proposal shall propose the price to deliver the solution described in the Technical Proposal. If the Technical Proposal includes an MVP, the Price Proposal shall clearly price the MVP separately from the balance of the work to deliver the proposed solution.

- a) The base CSP, which includes the EEI efforts, should not exceed \$350,000.
  - i) If an Offeror's base CSP is \$350,000 or less, then price proposal items b) and c) listed below are not required. Base CSPs which exceed \$350,000 will take longer to evaluate and award, if selected. Therefore, offerors are highly encouraged to keep their base CSP at or below \$350,000. For base CSPs exceeding \$350,000 and/or proposals containing MVPs price proposal items b) and c) are required. For CSPs at or below \$350,000, but contain an MVP option, price proposal items b) and c) are only required for the MVP option portion of the proposal.
- b) The Offeror shall propose a total fixed price with all components broken out in an Excel spreadsheet with working formulas using the template provided as Attachment 2. Supporting price quotation documentation shall also be included in narrative form to

provide a basis for the price, including enough information/explanation for the Contracting Officer to evaluate the price as fair and reasonable. The Government reserves the right to request any other labor cost data, pricing data, or supporting cost information deemed necessary to determine whether the price is fair and reasonable. The breakdown(s) shall include, at a minimum, the following major items along with associated backup documentation:

- (1) **Labor:** A breakout identifying the individual labor categories with associated labor hours and **fully burdened labor rates**, as well as a detailed Basis- of-Estimate (BOE) narrative description of the methods used to estimate labor costs.
- (2) **Travel:** Provide the purpose of each trip, number of trips, number of days per trip, departure and arrival destinations, number of people, etc.
- (3) **Other Direct Costs:** Itemized with costs and backup documentation to support each cost.
- (4) **Material/Equipment:**
  - (a) Itemized documentation supporting the reasonableness of any proposed equipment costs (e.g., vendor quotes, past purchase orders/purchase history, detailed engineering estimates, etc.) shall be provided, including a letter stating why the Offeror cannot provide the requested resources from its funding for the performing team.
  - (b) A priced Bill-of-Material (BOM) identifying, for each item proposed, the quantity, unit price, the source of the unit price (e.g., vendor quote, engineering estimate, etc.), the type of property (e.g., material, equipment, special test equipment, information technology, etc.), and a cross-reference to the Statement of Work (SOW) task(s) that require the item(s). At the time of CSP submission, any item that exceeds \$2,000 must be supported with basis-of-estimate (BOE) documentation such as a copy of catalog price lists, vendor quotes, or a written engineering estimate.
- c) Subcontract prices shall contain the same level of detail/breakdown as the prime proposal. Proposed subcontractors may submit supporting calculations of their price/cost directly to [DARPACSO@darpa.mil](mailto:DARPACSO@darpa.mil) at the same time of prime proposal submission.
- d) Total proposed price shall align with the sum of the proposed payment milestones in Section D of the proposal Statement of Work.

### 3.3 CSP BASIS OF EVALUATION

#### 3.3.1 Compliance

The Government will first review the CSP for compliance with the proposal requirements contained in this solicitation. Noncompliant CSPs will not be evaluated.

#### 3.3.2 Evaluation Criteria

The evaluation criteria for compliant CSPs are listed below. Factor 1 is the most important factor. Factor 2 is the next most important factor. Factor 3 is the least important factor. For Factor 1 and Factor 2, the Government evaluators may rely on their business judgment and

knowledge of the Offeror. Proposals will not be evaluated against each other since they are not submitted in response to a common performance work statement or statement of work. Awards will be subject to the availability of funds.

a) ***Factor 1: Potential Contribution and Relevance to the DARPA Mission***

- (1) **Impact to DARPA's Mission:** The proposal demonstrates the potential to make a significant difference or address key challenges aligned with DARPA's goals of strengthening the U.S. industrial base and increasing warfighter capacity.
- (2) **Overall Contribution:** The commercialization of technology clearly impacts DoD, government, and/or civil society in a meaningful way.
- (3) **Technical Risk:** The approach is realistic and has little to no technical challenges meaning the technology is proven and little to no additional development is required.

b) ***Factor 2: Commercialization readiness***

- (1) **Product Readiness:** The challenges associated with turning a technology into a product and then bringing that product to market are well defined and realistically achievable. **(For MVPs)** A base product exists.
- (2) **Intellectual Property (IP):** IP is clearly defined. The team owns or has the right-to-use all the IP required for commercialization such that there will be no impedance to commercialization efforts within the U.S. market. Maintains an IP strategy, including any licensing, and aligns a commercial pursuit path based on the use rights associated with the Offeror's IP. Any unclear aspects of IP strategy are subject to negotiation and could result in a failure to arrive at award.
- (3) **Team:** The proposed team possesses the necessary qualifications, capabilities, and skills to execute the tasks and has the required drive and ambition to commercialize. **(For EEs only)** The EE is sourced from outside the proposing organization.

c) ***Factor 3: Proposed Price is fair and reasonable.***

**3.3.3 Additional Compliance Criteria for OTs (for Minimum Viable Product only)**

If the Contracting/Agreements Officer decides to pursue an OT, the CSP will be evaluated to determine if the following factors are met:

- a) The product, service, or capability meets the definition of a prototype;
- b) Mission effectiveness is demonstrated;
- c) Meets the requirements for eligibility at 10 U.S.C. § 4022:
  - (1) There is at least one non-traditional defense contractor or nonprofit research institution participating to a significant extent in the prototype project; or;
  - (2) All significant participants in the transaction other than the Federal Government are small businesses (including small businesses participating in a program described under Section 9 of the Small Business Act (15 U.S.C. § 638)) or nontraditional defense contractors; or

- (3) At least one-third of the total cost of the prototype project is to be paid out of funds provided by sources other than the Federal Government; or;
- (4) The senior procurement executive for the agency determines, in writing, that exceptional circumstances justify the use of a transaction that:
  - (a) provides for innovative business arrangements or structures that would not be feasible or appropriate under a contract; or
  - (b) would provide an opportunity to expand the defense supply base in a manner that would not be practical or feasible under a contract.

## 4 AWARDS

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### 4.1 GENERAL GUIDELINES

#### 4.1.1 Type of Award at Government Discretion

Upon favorable review of the CSP, and subject to the availability of funds, the Government may choose to make a fixed price award either using a fixed price procurement contract or OT with fixed price payable milestones and notify the Offeror as soon as practicable.

#### 4.1.2 Negotiation of Award

The Contracting/Agreements Officer, with support of the proposal evaluation team, reserves the right to negotiate directly with the Offeror on terms and conditions, payment terms, etc., and to request proposal revisions based on evaluation strengths/weaknesses or funds availability before execution of the resulting contract or OT. ***Note: Only a Government Contracting/Agreements Officer has the authority to enter into, or modify, a binding contract/agreement on behalf of the United States Government.***

#### 4.1.3 Requirements to Receive a Fixed Price Award (Procurement Contract or OT)

- a) System for Award Management (SAM) and Unique Entity ID Requirements: All Offerors must be registered in SAM unless exempt per FAR 4.1102. FAR 52.204-7, "System for Award Management" and FAR 52.204-13, "System for Award Management Maintenance" are incorporated into this solicitation.
- b) Under FAR 4.1102 and 4.1201, Offerors requesting a procurement contract shall complete electronic annual representations and certifications at <https://www.sam.gov/> prior to award.
- c) As required by DFARS 252.204-7019 "Notice of NISTSP 800-171 DoD Assessment Requirements" and DFARS 252.204-7020 "NIST SP 800-171 DoD Assessment Requirements", the Offeror must be in compliance with submitting its summary level score of a current (within 3 years) NIST SP 800-171 DoD Assessment in the Supplier Performance Risk System. SPRS Software User's Guide for Awardees/Contractors available at [https://www.sprs.csd.disa.mil/pdf/SPRS\\_Awardee.pdf](https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf)
- d) Offerors shall register in the prescribed government invoicing system (Wide Area Work Flow: <https://wawf.eb.mil/xhtml/unauth/registration/notice.xhtml>) in order to receive payments under a contract or agreement.
- e) Award is contingent on Offerors being determined responsible by the Contracting/Agreements Officer. Offerors must not be suspended or debarred from

award by the Federal Government nor be prohibited by Presidential Executive Order and/or law from receiving an award.

- f) Helpful links to assist small businesses with registering in SAM, submitting NIST scores, etc. can be found at: <https://www.projectspectrum.io/#/useful-links>.

#### **4.1.4 Controlled Unclassified Information (CUI) and Controlled Technical Information (CTI) on Non-DoD Information Systems**

Information on CUI identification, marking, protection, and control will be provided by the Government and included in the award as applicable.

#### **4.1.5 Source Selection Sensitive Information**

DARPA policy treats all submissions as source selection sensitive information (see FAR 2.101 and 3.104) and discloses their contents only for the purpose of evaluation. During the evaluation process, support contractors may handle submissions for administrative purposes and assist with technical evaluation. All DARPA support contractors performing these roles are prohibited from performing DARPA- sponsored technical research and are bound by appropriate non-disclosure agreements. Subject to the restrictions outlined in FAR 37.203(d), input on technical aspects of the CSPs may be solicited by DARPA from non-Government consultants/experts who are bound by the appropriate non-disclosure requirements.

#### **4.1.6 DCSO Provision-Subject to Availability of Funds**

Funds are not presently available for this DCSO. The Government's obligation under this DCSO is contingent upon the availability of appropriated funds from which payment for DCSO purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting/Agreements Officer and the Contractor receives an award confirmed in writing by the Contracting/Agreements Officer.

#### **4.1.7 Agency Protests**

For information concerning agency-level protests, see <https://www.darpa.mil/work-with-us/procurementcontracts>.

#### **4.1.8 Ombudsman**

For any Agency Ombudsman related inquiries, please reach out to [DARPA\\_Ombudsman@darpa.mil](mailto:DARPA_Ombudsman@darpa.mil).

#### **4.1.9 DCSO Solicitation Feedback**

Feedback and recommendation on the solicitation are highly encouraged and may be submitted to [DARPACSO@darpa.mil](mailto:DARPACSO@darpa.mil).